

Natural justice

Right to be heard; Case management; Disqualification of adjudicators

Natural justice — also known as procedural fairness — comprises three limbs:

1. The hearing rule

Based on the maxim *audi alteram partem* — literally, to hear the other side. This requires each party to be afforded the opportunity to present one's case and test that of the opposing party: *Mooney v James* [1949] VLR 22 at 29; *T A Miller Ltd v Minister of Housing & Local Government* [1968] 2 All ER 633.

A refusal to permit an advocate an opportunity to address the court may result in a denial of natural justice: *Mooney v James* [1949] VLR 22 at 31; *Escobar v Spindaleri* (1986) 7 NSWLR 51. See also *Stead v SGIC* (1986) 161 CLR 141; *Mahon v Air New Zealand Ltd* [1984] AC 808; *Chu v Henham* (1999) 105 A Crim R 528.

2. The bias rule

The decision maker must not have an interest in the outcome of the decision. This rule provides:

- (a) An adjudicator must be free of bias and strive to not give an impression of pre-judgment of a point in issue: *Johnson v Johnson* (2000) 201 CLR 488 at [40];
- (b) Justice should not only be done, but should manifestly and undoubtedly be seen to be done: *R v Sussex Justices; Ex parte McCarthy* [1924] 1 KB 256 at 249, *Johnson v Johnson* (2000) 201 CLR 488 at [42];
- (c) The test is whether a fair-minded lay observer might reasonably apprehend that the judge might not bring an impartial and unprejudiced mind to the resolution of the question [he or she] is required to decide: *Ebner v Official Trustee* (2000) 205 CLR 337 at [83].

3. The evidence rule

Decisions must be based on logically probative evidence: *Salemi v Mackeller (No 2)* (1977) 137 CLR 396. The corollary of this is that a failure to give reasons for a decision, so that the parties may understand the reasoning on which a decision is based, may be a denial of natural justice: *Gould v Kok*, unrep, 23 May 1994, NSW Sup Ct per Young J. See also *Sunn Alliance Insurance Ltd v Massoud* [1989] VR 8; *Bittingham v Williams* [1982] VLR 237; *Pasha v Edmonds* (1998) 28 MVR 217; *Rowlands v Police* (2005) 79 SASR 569 at [26]. (See also *Perkins v County Court of Victoria* (2000) 2 VR 246 at [56].)

[A denial of any aspect of natural justice may afford grounds for an appeal.](#)

Case Management

One way courts address tensions between court workloads and the capacity of litigants before the courts to meet those workloads is through case-management. This often results in listing practices and directions from courts concerning adjournments.

On case-management the High Court has said:

The contemporary approach to court administration has introduced another element into the equation or, more accurately, has put another consideration in the scales. The view that the conduct of litigation is not merely a matter for the parties but is also one for the court and the need to avoid disruptions in the court's lists with consequent inconvenience to the court and prejudice to the interests of other litigants waiting to be heard are pressing concerns to which a court may have regard: *Sali v SPC Ltd* (1993) 67 ALJR 841 AT 849; 116 ALR 625 at 636 per Toohey and Gaudron JJ.

However, this stance has been qualified. The rights of the community, represented either by the Crown in superior courts or the informant in summary courts, deserve to be considered in the exercise of discretionary judgments that affect the rights of the parties in a criminal case.

The Crown is as much entitled to natural justice as any other litigant: *R v Lewis* (1988) 165 CLR 12 at 17.

Case management is not an end in itself. It is an important and useful aid for ensuring the prompt and efficient disposal of litigation. But it ought always to be borne in mind, even in changing times, that the ultimate aim of a court is attainment of justice and no principle of case management can be allowed to supplant that aim: *Queensland v JL Holdings Pty Ltd* (1997) 189 CLR 146 at 154 per Dawson, Gaudron and McHugh JJ.

The court exercising the discretion must engage in a process of balancing the right of an accused person to a fair trial with the legitimate public interest in the disposition of criminal charges, and in the conviction of those who are guilty and the need to maintain public confidence in the administration of justice: *Champion v Richardson* (2003) 40 MVR 529 at 539, citing *Walton v Gardiner* (1993) 177 CLR 378.

See also *Police v Struck* [2005] SASC 76, where case-management by a magistrate was deemed inappropriate on review.

Bases for disqualification of judicial officers

1. Actual bias

Eg. Pecuniary interest in proceeding

2. Apprehended bias

a) [Apparent disinterest](#)

An adjudicator must be free of bias.

The fundamental requirements of independence and impartiality do not imply that adjudicators must be absolutely neutral, in the sense of having ‘no sympathies or opinions’. But they do require that adjudicators ‘strive to ensure that no word or action during the course of the trial or in delivering judgment’ leaves an impression of prejudgment of a point in issue: *Johnson v Johnson* (2000) 201 CLR 488 at [40], citing *R v S (RD)* [1997] 3 SCR 484 at 534.

b) [Appearance of justice](#)

Justice should not only be done, but should manifestly and undoubtedly be seen to be done: *R v Sussex Justices; Ex parte McCarthy* [1924] 1 KB 256 at 249, cited in *Johnson v Johnson* (2000) 201 CLR 488 at [42].

c) [Applying realistic criteria](#)

Deciding whether a judicial officer (or juror) *might* not bring an impartial mind to the resolution of a question that has not been determined requires no prediction about how the judge or juror will in fact approach the matter. The question is one of possibility (real and not remote), not probability: *Ebner v Official Trustee* (2000) 205 CLR 337 at [7].

The test for apprehended bias

The test is:

[W]hether a fair-minded lay observer might reasonably apprehend that the judge might not bring an impartial and unprejudiced mind to the resolution of the question [he or she] is required to decide: *Ebner v Official Trustee* (2000) 205 CLR 337 at [83].

See also: *Johnson v Johnson* (2000) 201 CLR 488 at [11] citing *Re Lusink; Ex parte Shaw* (1980) 55 ALJR 12; *Livesey v New South Wales Bar Association* (1983) 151 CLR 288; *Vakauta v Kelly* (1989) 167 CLR 568, *Webb v The Queen* (1994) 181 CLR 41.

Qualifier

It needs to be said loudly and clearly that the ground of disqualification is a reasonable apprehension that the judicial officer will not decide the case impartially or without prejudice, rather than that he will decide the case adversely to one party. There may be many situations in which previous decisions of a judicial officer on issues of fact and law may generate an expectation that he is likely to decide issues in a particular case adversely to one of the parties. But this does not mean either that he will approach the issues in that case otherwise than with an impartial and unprejudiced mind in the sense in which that expression is used in the authorities or that his previous decisions provide an acceptable basis for inferring that there is a reasonable apprehension that he will approach the issues in this way: *Re JRL; Ex Part CJL* (1986) 161 CLR 342 at 352.